

Change of Plea Hearing Procedure
All Tucson Magistrate Judges
Updated 6/26/2025

1. Call or email the Magistrate Judge's Chambers to coordinate a tentative date/time for a change of plea hearing on the court's calendar.
2. File a notice of change of plea on the docket with the coordinated date/time as discussed with Chambers. *An order will go out once notice is filed and the hearing will be officially set.*
3. *Counsel shall ensure accuracy of the plea agreement Defendant is pleading to, including correct charges, and charging document.*
4. At the time of the hearing, physical (paper) documents are submitted to the Courtroom Clerk (consent, plea agreement, waiver (if appropriate), etc. Handwritten signatures on documents are always accepted. Additionally, the following are accepted signature-types for documents:
 - a. **Plea agreement:** Electronic signatures are accepted for attorneys only. Defendant's signature must be his or her handwritten signature.
 - b. **Consents & Waivers:** Electronic signatures are accepted, and attorneys may sign on behalf of the Defendant.

Additional Change of Plea Procedure **ONLY** for Magistrate Judge Lynnette C. Kimmins.

Prior to the scheduled change of plea hearing Defense Counsel will email chambers a copy of the plea agreement that the defendant intends to plead to at the hearing. An unsigned copy is fine.